BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

PRINCIPAL BENCH

NEW DELHI

Company Petition No. (CAA) 49/PB/2019

Connected with

Company Application No.CA (CAA) 117/PB/2018

Judgment dated: 08.04.2019

Coram:

CHIEF JUSTICE (Rtd.) SHRI M.M. KUMAR,

HON'BLE PRESIDENT

&

MR. S.K. MOHAPATRA,

MEMBER (TECHNICAL)

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

1. ALCHEMIST LIFE SCIENCES LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at 23, Nehru Place, New Delhi – 110019

...Transferor Company No. 1/Applicant Company No. 1

AND

2. BREEZE INFOTECH PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at M-31, Second Floor, Greater Kailash, Part-2, New Delhi-110019

...Transferor Company No. 2/Applicant Company No. 2

AND

3. SHARP INVESTMENT CONSULTANTS PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at 138, Devika Towers, Nehru Place, New Delhi-110019

...Transferor Company No. 3/ Applicant Company No. 3

AND

4. KDS CORPORATION PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at Plot No. F-5, Rajiv Gandhi IT Park, Chandigarh-160101

...Transferor Company No. 4/

Non-Applicant Company

AND

5. SUKH-CHAIN CONSTRUCTIONS PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at SCO 122-123, Cabin No. 23, 1st Floor, Sector-8, Chandigarh-160009.

...Transferor Company No. 5/

Non-Applicant Company

AND

6. ALCHEMIST RETAIL LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at SCO 122-123, Cabin No. 10, Basement, Sector-8-C, Chandigarh-160009.

...Transferor Company No. 6/

Non-Applicant Company

AND

7. ALCHEMIST F&B LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at Plot No. F-5, Rajiv Gandhi IT Park, Chandigarh-160101

...Transferor Company no. 7/

Non-Applicant Company

AND

8. SKYZ LIFE SCIENCES PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at SCO-104,

Joginder Chambers, 1st Floor, Modi Plaza, Nabha Gate, Patiala, Punjab-147001.

...Transferor Company No 8/

Non-Applicant Company

AND

9. SPERSH CREATIONS PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at SCO 122-123, Cabin No. 23, 1st Floor, Sector 8, Chandigarh-160009

...Transferor Company No. 9/

Non-Applicant Company

AND

10. UNIQUE CREATIVITY & CONSTRUCTIONS PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at SCO 122-123, Cabin No. 62, Top Floor, Sector- 8, Chandigarh-160009

...Transferor Company No. 10/Non-Applicant Company

AND

11. SOBO HOSPITALITY PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at No. 109, The Jewel (Roxy Cinema Building) Mama Parmanand Marg, Opera House, Mumbai-400004

...Transferor Company No. 11/Non-Applicant Company

AND

12. TECHNOLOGY PARKS LIMITED, a company incorporated under the Companies Act, 1956 having its registered office at Flat No. 511, Chiranjiv Tower, Nehru Place, New Delhi-110019

...The Transferee Company/

Applicant Company No. 4

For the Applicants: Mr. Krishnendu Datta, Ms. Sonia Dube, Mr. Shatadru Chakraborty and Ms. Harshita Verma, Advocates

ORDER

M.M. KUMAR, PRESIDENT

This is a second motion Petition which has come up before us for admission and for fixing a date of hearing of the main Company Petition as well as for issuance of direction concerning publication of notices in press to be carried and notices to be issued to the authorities concerned including sectoral regulators if any. The prayer also is to fix date of hearing of the Petition and calling for the objections, if any, to the Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME") between the Petitioner Companies.

2. From the records, it is seen that the First Motion application seeking direction for dispensing/convening the meeting of Shareholders and Creditors was filed before this Tribunal being CA (CAA) No. 117(PB) 2018 under Sections 230-232 of the Companies Act, 2013. In the order dated 03.10.2018, 14.11.2018,

03.12.2018 and 18.12.2018 the meetings of the Shareholders and Creditors of the Petitioner Companies were directed to be convened. In the meetings, the shareholders and creditors duly approved the Scheme.

Subsequently, this petition on second motion has come up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 and it is now hereby ordered as follows: -

(i) Notice of the hearing shall be published in the English Daily, "**Business Standard**" (Delhi edition) and Hindi Daily "**Jansatta**" (Delhi edition) not less than 10 days before the aforesaid date fixed for hearing i.e 29.05.2019.

(ii) In addition to the above public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Ministry of Corporate Affairs through Regional Director (Northern Region), (b) Ministry of Corporate Affairs ; Registrar of Companies, NCT of Delhi & Haryana; (c) the Income Tax Department, alongwith full details of assessing officer and PAN Card numbers of all the companies; (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who

may govern the working of the respective companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iii) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act along with a copy of the Petition and the Annexures who may have made representation and who desired to be heard in their representation atleast 15 days before the date fixed for hearing.

(iv) All the Petitioners shall atleast 7 days before the date of hearing of the Petition file an affidavit of service in relation to publication in newspapers as well as service of notices on the Authorities specified above including the Sectoral Regulators and to Objectors, if any.

(v) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vi) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(vii) The next date of hearing of the Petition shall be on 29.05.2019 for the consideration of the approval of the Scheme as contemplated between the Petitioner Companies.

Sd/-

(M.M. KUMAR)

PRESIDENT

Sd/-

(S.K. MOHAPATRA)

MEMBER (TECHNICAL)

(Vidya)